THE STATE

Versus

SIPHO MOYO

HIGH COURT OF ZIMBABWE
KABASA J with Assessors Mr. T.E Ndlovu and Mr. J. Zulu
HWANGE 23 AND 24 JUNE 2025

Criminal trial

M. Dube, for the state
D. Ncube, for the accused

KABASA J: The accused appeared before us on a charge of murder to which he pleaded not guilty.

The state alleges that on 6 December 2024 the accused had a misunderstanding with the deceased which culminated with the accused assaulting the deceased using an axe and a stone. The deceased succumbed to the injuries on 13/12/2024.

The accused does not deny assaulting the deceased on the day in question. He therefore accepts causing the injuries from which the deceased succumbed whilst admitted at Mpilo hospital.

He however said he had been provoked by the deceased who slapped him after the accused had greeted him. He used a stone and kicked the deceased repeatedly but had no intention to kill him.

To prove its case, the state tendered the post mortem report and accused's confirmed warned and cautioned statement.

The postmortem report gave the cause of death as:-

1. hypovolemic shock

2. Blunt thoracic trauma

3. Assault

The confirmed warned and cautioned statement stated the following:-

> "I do admit to the allegations of causing the death of the now deceased. I assaulted the now deceased once on his head using a stone and booted him several times all over his body. I never used any other weapon to assault the now deceased."

Evidence was then led from two witnesses. Both witnesses were present at Pinafore shops on 6 December 2024. In brief the first witness saw the accused who was fighting with some young men. These young men fled and the now deceased also left. He later saw the now deceased being chased by the accused coming from the direction of the deceased's home. The accused was carrying an axe and a stone. He later observed the axe which had blood stains and the accused came to where he was and uttered the following words "He was done with the old man." He went to where there was "noise" and saw the deceased who was facing downwards and his breathing was labored. He observed a wound at the back of his head, abrasions on the mouth, and a wound on the forehead. The accused also said that old man had caused the healed scar that was above his nose. He said these words when the witness asked him why he was fighting the now deceased.

The second witness's evidence was more or less to the same effect. He saw the accused chasing after the now deceased and heard him utter the words that "I have finished with that old man."

The issue is whether the accused was provoked to an extent that he did not have the intention to kill the deceased as a result of that provocation.

Section 239 of the Criminal Law Code (Chapter 9:23) provides that:-

> "(1) If after being provoked a person does or omits to do anything resulting in the death of a person which would be an essential element of the crime of murder if done or omitted, as the case may be, with the intention or realisation referred to in section forty-seven, the person shall be guilty of culpable homicide if, as a result of the provocation –
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> (a) he or she does not have the intention or realisation referred to in section forty-seven or
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> (b) he or she has the intention or realisation referred to in section forty-seven but has completely lost his or her self-control, the provocation being sufficient to make a reasonable person in his or her position and circumstances lose his or her self-control."

The two witnesses who testified just happened to be at these shops on this day. All they testified to was what they observed and heard. They were both candid in admitting that they did not witness the assault as the accused and deceased were not within sight.

What reason could they possibly have to lie against the accused? Were they bent on lying they could have easily said they witnessed the assault.

We were satisfied they were credible witnesses whose evidence can be safely relied on.

That said, we pose the question? What provoked the accused who was having a fight with these other young men when the now deceased decided to leave that place? At the time the deceased left the first witness was present and he did not see the alleged assault on the accused. When was he assaulted then? And if he was assaulted why did he not say so when the first witness asked him why he was fighting the deceased? In response he said it was the deceased who had caused the old scar above his nose. It means therefore he was harbouring a grudge and decided to seek revenge. That is not what provocation and loss of control entails. In provocation you act in the heat of the moment without giving much thought to your conduct and that is why where one successfully pleads provocation, the charge of murder is reduced to a culpable homicide conviction.

It is also crucial to note that the accused did not mention this provocation when he was given the first opportunity to state his side of the story, i.e. when he gave his warned and cautioned statement. If he had been provoked he would have mentioned that. After all he was expected to say what caused him to assault the now deceased. It would not have required him to think about what to say, the provocation issue would have been the first thing one would have expected him to mention. He did not because there was no such provocation. Seeking revenge is a completely different story and has nothing in common with acting in the heat of the moment. Hypovolemic shock speaks to severe blood loss. Such was a direct result of the assault perpetrated on the deceased by the accused.

The thorax is the organ between the neck and the abdomen and contains vital organs like the heart and lungs. There was blunt thoracic trauma which contributed to the deceased's death.

It appears the accused labours under the misapprehension that if you repeatedly kick a human being such would not cause death. The fact is that it can cause death especially when the assault with booted feet is directed at vital organs of a human being.

The axe which he had was blood stained, a clear indication that he had used it on the deceased. Why would one use an axe on a human being and not expect that person to be fatally wounded?

The accused sought to hide behind beer by saying he was drunk. He may have taken alcohol but that did not impair his senses. He was able to recount the events of that day, an account he sought to portray as the truth of what happened but which was shown to be false. He knew what he was doing and appreciated his actions. He was determined to harm the now deceased and chased after him until he caught up with him, assaulted him in a manner that resulted in a depressed fracture in the left parietal region, rupture of the lung vessels, contusion in both lungs resulting is hemothorax.

He must have appreciated that he could cause death but continued with his conduct. Whether the intention was actual or legal is neither here nor there (*S* v *Mapfoche* S 84-21). The distinction is insignificant, murder is murder whether it is as described in s 47(1)(a) or (b).

We are therefore satisfied the state proved its case beyond a reasonable doubt and accordingly find the accused guilty as charged.

Sentence

You are a 20 year old first offender. You were 19 at the time of the commission of the offence. You were and are still youthful. You did not go to school and lacked parental control as your father is in South Africa and you lost your mother when you were still young.

You have been in pre-trial incarceration for 6 months. The taking of a life is not something that one can forget in a hurry. The death of the deceased will likely haunt you for the rest of your life. Mental imprisonment is far worse than the imprisonment which comes from the four corners of a prison cell.

Your age will be an important consideration in arriving at an appropriate penalty (*S* v *Zaranyika & Ors* 1995 (1) ZLR 270 (H)).

In aggravation is the fact that a life was unnecessarily lost. The deceased was 40 years old. He must have had a family. You have deprived his loved ones of support both emotionally and financially. Unfortunately we were not favoured with a victim impact statement as the state could not find deceased's relatives who could provide such a statement.

It appears violence is the language which gold panners 'speak'. It is saddening to note the number of murder cases involving gold panners. You appear not to respect the sanctity of life.

You used a weapon in inflicting the injuries which took the deceased's life. An axe is never meant to be used on a human being. The assault was vicious, rupturing lung vessels and fracturing the skull.

The presumptive penalty, where a weapon has been used, is 20 years imprisonment. The statutory penalty is up to a maximum of life imprisonment.

We would have imposed 20 years were it not for your youthful age.

You are accordingly sentenced to 16 years imprisonment.

National Prosecuting Authority, state's legal practitioners
Legal Aid Directorate, accused's legal practitioners